

LAW & MOTION TENTATIVE RULINGS  
DEPARTMENT 5  
August 20, 2026  
8:30 AM/1:30 PM

**12. JUDY MARCUM V. ZACHARY NUGENT**

**21FL0051**

Respondent filed a Request for Order (RFO) on June 2, 2026, seeking modification of the current visitation orders. Petitioner was electronically served on June 13, 2026.

Petitioner filed a Responsive Declaration on July 22, 2026. Petitioner was served on July 22<sup>nd</sup>.

The court notes the parties have not participated in Child Custody Recommending Counseling (CCRC) in the last year. Respondent failed to appear at the CCRC appointment when it was set earlier this year, despite it being set at his request. The court finds good cause to refer the parties to CCRC. Parties are to attend CCRC on Friday, October 30<sup>th</sup> at 1:00 pm and return for a review hearing on Thursday, December 17<sup>th</sup> at 1:30 pm in Department 5. If either party fails to appear at the CCRC appointment, the court may issue sanctions against the party. Any Supplemental Declarations are due at least 10 days prior to the review hearing date. Pending the review hearing, all prior orders remain in full force and effect.

Respondent is directed to prepare the Findings and Orders After Hearing (FOAH); however, this order is effective immediately upon the court's adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

**TENTATIVE RULING #12: THE COURT FINDS GOOD CAUSE TO REFER THE PARTIES TO CCRC. PARTIES ARE TO ATTEND CCRC ON FRIDAY, OCTOBER 30<sup>TH</sup> AT 1:00 PM AND RETURN FOR A REVIEW HEARING ON THURSDAY, DECEMBER 17<sup>TH</sup> AT 1:30 PM IN DEPARTMENT 5. IF EITHER PARTY FAILS TO APPEAR AT THE CCRC APPOINTMENT, THE COURT MAY ISSUE SANCTIONS AGAINST THE PARTY. ANY SUPPLEMENTAL DECLARATIONS ARE DUE AT LEAST 10 DAYS PRIOR TO THE REVIEW HEARING DATE. PENDING THE REVIEW HEARING, ALL PRIOR ORDERS REMAIN IN FULL FORCE AND EFFECT.**

**RESPONDENT IS DIRECTED TO PREPARE THE FINDINGS AND ORDERS AFTER HEARING (FOAH); HOWEVER, THIS ORDER IS EFFECTIVE IMMEDIATELY UPON THE COURT'S ADOPTION OF THE TENTATIVE RULING AND IS NOT CONDITIONED ON THE PREPARATION OF THE FOAH.**

**NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE**

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**TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO* LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.**